

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 39-011
Amendments to Title 17 of the Chickasaw Nation Code
(Offenses and Penalties)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for offenses and penalties and desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves and adopts the following amendments to Title 17 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through; and omissions without deletions of substance are signified by “* * *”):

SECTION 17-800.2

ACTUAL PHYSICAL CONTROL.

E. Conviction for a second or subsequent offense of Actual Physical Control, or following an offense of 17-800.8, Driving under the Influence, shall be punishable by a fine not to exceed fifteen thousand (\$15,000.00), by a term of imprisonment not to exceed three (3) years, or both.

~~E. Conviction for a second or subsequent offense of Actual Physical Control shall be punishable by a fine not to exceed fifteen thousand (\$15,000.00), by a term of imprisonment not to exceed three (3) years, or both.~~

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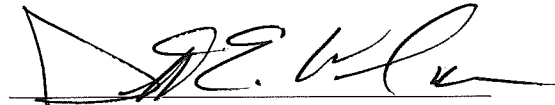
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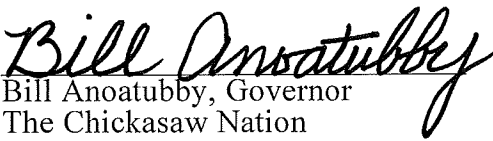
Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on August 19, 2022, by a vote of 11 ayes, 0 nays, and 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: AUG 19 2022

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Explanation:

This Resolution authorizes, approves, and adopts an amendment to Title 17 by removing duplicate language (i.e. Subparagraph “E”) from the previously amended Section 17-800.2.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature